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File No.: EXP202317150

RESOLUTION FOR FILING OF ACTIONS

From the actions carried out by the Spanish Agency for Data Protection and based on the following:
FACTS

FIRST: A.A.A., on behalf of B.B.B. (hereinafter, the complaining party) filed a complaint with the Spanish Agency for Data Protection on September 18, 2023. The complaint is directed against C.C.C. and his father, D.D.D., who, on different dates in August and September 2023, sent emails copying multiple recipients, without consent from my represented party or the other recipients, in which they transmitted personal data and false information that affects personal privacy and undermines the reputation, dignity, and professional credit of my represented party and the other concerned individuals.

Along with the notification, a copy of the emails subject to this complaint, originating from the domain movileanuholding.com, is provided. In these emails, C.C.C. identifies himself as (...) Movileanu Holding and D.D.D. as (...) of the same entity.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to MOVILEANU TURISM HOLDING, S.L. with NIF B16720120, understanding that it was considered the party complained against, so that it could analyze the situation and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations. The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on 10/12/2023, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, a copy was sent by certified postal mail, which was returned marked "unknown" on 08/01/2024, as indicated in the acknowledgment of receipt.

Consequently, no response has been received to this transfer document.

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THIRD: On December 18, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complaining party was admitted for processing.

LEGAL GROUNDS

I

Competence

According to and pursuant to the provisions of Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these actions. Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Preliminary Issues

In this case, the file contains various emails sent by C.C.C. on August 3, 2023, and on September 6 and 11, and by D.D.D. on August 3, 11, 17, 23, 28, August 31, and September 1, indicating various

email accounts as recipients, including that of the complaining party. In these emails, the functionality of blind carbon copy was not used, so the addresses of the recipients were visible to all.

Considering the documentation in the file, since the complaint has been filed by the complaining party, without representation from the other recipients of the communication, it can be stated that there has been processing of the personal data of the complaining party in accordance with the definition contained in Article 4.1 of the GDPR: "processing": any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, collation or interconnection, limitation, erasure or destruction;

Noting the above, it is important to point out that, although the emails sent by C.C.C. and D.D.D. provided with the complaint are sent from addresses belonging to the domain movileanuholding.com (**USER.1 and **USER.2, respectively) and that in them the senders use the corporate signature footer, the content of the emails leaves no doubt regarding the

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personal nature of the message and, therefore, excludes any professional or related purpose with the entity MOVILEANU TURISM HOLDING, S.L.

By way of example, we highlight the following contents of the communications made:

In the email dated August 17, 2023, at 13:46 sent by D.D.D., reference is made to a debt incurred in 2007 by E.E.E. (to whom the communication is addressed) in favor of C.C.C. for an amount of **CANTIDAD.1 euros plus financial expenses. The sender identifies as (...) C.C.C. and formally requests in writing the return of the money owed to him.

In the same vein—request for the return of the loaned amount—the email sent by C.C.C. on that same August 17 at 15:10 states.

In an email dated August 23, 2023, at 18:18, C.C.C. addresses the claimant insisting on the payment of the incurred debt, identifying E.E.E. as a relative of F.F.F., who is ultimately the claimant's boss.

In an email dated August 28, 2023, at 14:27, D.D.D. questions someone identified as G.G.G., indicating that no money has been stolen from C.C.C. in any country, only in Spain, and only by the employee of his company **EMPRESA.1. We highlight that among the considerations included in the mentioned email, the following is found:

5. You have lent money to your direct boss, which you have put into your company; I do not understand what kind of bosses you hire in your company that allow them to ask for huge amounts of money from their employees.

On August 31, 2023, D.D.D. sends an email that begins with the words "Dear H.H.H." and then indicates the following:

In August 2008, (...) through his lawyer, a complaint was filed by the company **EMPRESA.2, regarding the financial crimes of the companies that have supposedly defrauded **EMPRESA.2, (...), in the complaint document it appears that the highest responsible is C.C.C., being B.B.B. (...) and with access to the banks internally in the company **EMPRESA.2 (...) (...).

I request an investigation, because the 3 companies are from the province of Asturias, being the only person from the company **EMPRESA.2, I.I.I., and according to the police results, the material of (...) euros has been sent by international means to Pakistan. Can you explain to me why the destination is Pakistan, when (...) is the owner of **EMPRESA.1., the last boss of C.C.C., before November 2, 2006, when C.C.C. was hired at **EMPRESA.2. (...)

In February 2012 (...), B.B.B. requested in writing from C.C.C. to work 16 consecutive hours and weekends, this is illegal, and I do not allow C.C.C. to work 16 consecutive hours (...)

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On September 1, 2023, at 12:37, D.D.D. sends a new email in which he insists on the collection of the incurred debt and makes considerations such as the following:

I want to ask (...) how many times has your salary been lowered at LG? How many times has money been stolen from H.H.H. or B.B.B.? How many times has money been stolen from J.J.J.? Why do they steal money from C.C.C. in the workplace and why do their bosses steal money?

Attached to this email is a bank statement showing a transfer in favor of E.E.E. dated 13/06/07 for the amount of 13,000.30 euros.

From the above, the following can be concluded:

- The emails sent by C.C.C. and D.D.D., while using the domain of the entity they are from (...), do not raise issues related to the entity MOVILEANU TURISM HOLDING, but rather, on the contrary, make personal considerations related to a debt of which C.C.C. is a creditor.
- The content of the emails also demonstrates that their recipients are somehow aware of the matters raised in them and that they are or have been part of C.C.C.'s professional life. The reference to the different recipients in the content of the message leads to the understanding that they know each other.

III

Conclusion

Recital 18 of the GDPR states the following: This Regulation does not apply to the processing of personal data by a natural person in the course of an activity that is exclusively personal or domestic and, therefore, has no connection with a professional or commercial activity. Personal or domestic activities may include correspondence and the keeping of an address book, or activity on social networks and online activity carried out in the context of the aforementioned activities. However, this Regulation applies to controllers or processors who provide the means to process personal data related to such personal or domestic activities.

In line with the above, Article 2.2 c) of the GDPR provides the following: This Regulation does not apply to the processing of personal data: c) carried out by a natural person in the exercise of activities that are exclusively personal or domestic;

According to the Judgment of the Supreme Court, Third Chamber, of the Administrative Litigation, Section 3, Judgment 815/2020 of June 18, 2020, Rec. 1074/2019, there are two legal requirements for the exclusion clause to come into play: that the data processing is done by an individual and that it is done within the framework of an exclusively personal or domestic activity.

Likewise, it must be taken into account that regarding Administrative Sanctioning Law,

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Due to its specialty, the principles inspiring the criminal order apply to it, with some nuances but without exceptions, resulting in the clear full effectiveness of the principle of presumption of innocence. Not in vain, Article 53.2 b) of the LPACAP recognizes the right of the presumed responsible parties to "the presumption of non-existence of administrative responsibility until proven otherwise." Indeed, the Constitutional Court, in Judgment 76/1990, considers that the right to the presumption of innocence entails "that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the result of the evidence presented, freely assessed by the sanctioning body, must translate into an acquittal ruling." In short, the application of the principle of presumption of innocence prevents attributing an administrative infringement when there has not been obtained and verified the existence of incriminating evidence supporting the facts that motivate this attribution.

Consequently, since it has not been proven that the communications were not made within the

framework of an exclusively private and domestic activity and that the email addresses used were not previously known by the recipients, it can be concluded that no facts have occurred that fall within the jurisdiction of the Spanish Agency for Data Protection.

In accordance with the above, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to the complaining party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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